

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV,

— vs. —

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

INFORMAL DOCKET NO.: 1953(I)

KAIRAT NURGAZINOV,

— vs. —

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

COMPLAINANTS' STATUS REPORT

Complainants herein submit this Status Report to make the Presiding Officer aware of a change in status regarding the above captioned matter.

As the Presiding Officer is aware, respondents' counsel by Eric Jeffrey, Esq. ("Jeffrey") has recently interposed a motion seeking an Order granting leave for Jeffrey and his firm to withdraw as counsel for the respondents herein.

Conspicuously absent from Jeffrey's motion papers is information regarding a change in status regarding respondents Empire United Lines Co. Inc. ("EUL") and Michael Hitrinov ("Hitrinov").

Specifically, it has come to the attention of complainants' counsel that the offices of EUL previously located at 2303 Coney Island Avenue, Brooklyn, New York are now *vacant*. Annexed hereto as Appendix "1" is a Certificate of Service completed by one Leon Grobstin which was executed following attempted service upon EUL in an unrelated matter at its now former offices.

Accordingly, in light of the foregoing, and to the extent that Jeffrey has presumptively attempted to make service of his instant motion upon EUL at its now former address, any such attempted service at same is clearly insufficient.

Certainly, this change in status of his own client's business address is one which was unassailably known, or should have been known, by Jeffrey at the time that he attempted to make service of his instant motion upon respondents EUL and Hitrinov. Further, and based upon the information contained in the Certificate of Service annexed hereto as Appendix "1" it was recently confirmed on October 20, 2016 that Hitrinov continues to reside at the same residence he has maintained since the inception of this litigation, to wit: 7410 Ridge Blvd., Apt. 3-F, Brooklyn, NY 11209.

Based upon the foregoing changes in the status of respondents EUL and Hitrinov, and Jeffrey's abject *failure* to conduct due diligence as to his own clients' whereabouts, it is respectfully submitted that the Presiding Officer should take said changes in status into account and consideration in deciding Jeffrey's pending motion for an Order granting leave for he and his firm to withdraw as counsel for the respondents herein.

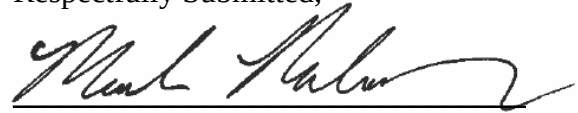
In closing, and assuming Jeffery is 'true to form' consistent with his demonstrated history of erratic and oddly eccentric behavior and conduct, together with didactic and skewed interpretation of the Commission's Rules of Practice and Procedure ("RPP") by attempting to characterize the instant Status Report as "a motion by email", complainants do prospectively reject

and object to any such fallacious and erroneous suggestion or interpretation by Jeffrey in response to complainants' instant Status Report.

In closing, and as always, complainants thank the Presiding Officer for his continuing many courtesies and consideration in this case.

Dated: November 22, 2016
Brooklyn, New York

Respectfully Submitted,

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

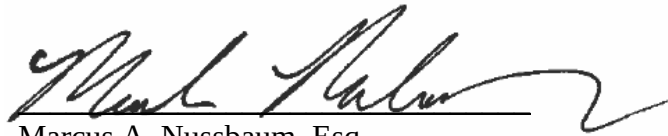
Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' STATUS REPORT** upon Respondents' Counsel at the following address:

Nixon Peabody LLP
Attn: Eric C. Jeffrey, Esq.
799 9th Street NW, Suite 500
Washington, DC 20001-4501

by first class mail, postage prepaid, and via email (ejeffrey@nixonpeabody.com).

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

Dated: November 22, 2016 in Brooklyn, New York.

APPENDIX “1”

**UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF NEW JERSEY**

Ardak Akishev, et al. Plaintiffs, v. Sergey Kapustin, et al, Defendants.	Civil Action No. 13-cv-07152(NLH)(AMD) CERTIFICATE OF SERVICE
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STATE OF NEW YORK
COUNTY OF KINGS

Leon Grobstin, being duly sworn deposes and says; deponent is not a party to this action, is over the age of 18, reside in the State of New York.

I hereby certify that

1. I am a licensed private investigator in the State of New York, License No. 11000049473, Exp. 05/14/2017.
2. I was retained by Anna V. Brown, Esq., attorney for Plaintiffs in this action to effect service of the Summonses, Amended Answer and Crossclaims (Docket No. 88) and First Amended Crossclaim Complaint (Docket No. 274) on Michael Hitrinov in his individual capacity and as President of the Empire United Lines Co, Inc.
3. On October 20, 2016, I arrived at the office of Empire United Lines at 2303 Cooney Island Avenue, Suite 2-D, Brooklyn, New York, 11223. The office was uninhibited and in the process of renovation, according to the construction workers and an employee of the business next door told me that Empire United Lines went out of business about 3 months ago.
4. On October 20, 2016 at 12:45 pm, I arrived at the residence of Michael Hitrinov at 7410 Ridge Blvd, apt. 3-F, Brooklyn, NY 11209. His residential address was verified through the public records database. There was also a sign in the building with the name of Michael

Hitrinov on it. I entered the building using the building door code [REDACTED] and knocked at the door of apartment 3-F.

5. A white male in his early fifties fitting the description of the Michael Hitrinov opened the door of apartment 3-F. I asked him whether he is Michael Hitrinov and he told me in Russian that he is Michael. I handed the documents to Mr. Hitrinov and he accepted them.

6. I also recognized him from the photograph supplied to me by Plaintiff's attorneys.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Dated: October 25, 2016



Leon Grobstin

CHRISTOPHER N. EPPS
NOTARY PUBLIC, STATE OF NEW YORK
No. 01EP6132701
QUALIFIED IN QUEENS COUNTY
COMMISSION EXPIRES AUGUST 29, 2017

